

accumulating fund be from the first a vested interest, so that not the *right to the enjoyment*, but only the *actual enjoyment*, is suspended; as where a settlor directs rents to be accumulated to raise a certain sum for A., to be paid to him on the completion of the accumulation; so that A. has a vested interest in the rents as they arise (*c*). 3. An accumulation can be directed for one only of the periods allowed by the statute, and not for two or more of the periods combined (*d*). *4. The accumulation, though directed to commence not at the testator's death, but at some subsequent period, must still terminate at the expiration of twenty-one years from the testator's death (*a*), and the term of twenty-one years is to be reckoned exclusive of the day on which the testator died (*b*).

5. **Where the limit exceeded, the trust is good pro tanto.** — If the trust exceeds the limits prescribed by the statute, but not the limits allowed by the common law, the accumulation will be established to the extent permitted by the Act, and will be void for the excess only (*c*). 6. If an accumulation be not *expressed* but *implied*, as in the gift of a residue to *all* the children of A., and no life estate given to A. himself, so that the class cannot be ascertained until his death, and the fund must accumulate during the interim, it is the better opinion, as originally decided by Lord Langdale (*d*), that the prohibition of the statute was meant to apply (*e*). The late Vice-Chancellor of England observed that the statute was intended only to put an end to accumulations *expressly* directed (*f*); and in a subsequent case before him so decided (*g*). And the same view was adopted by Sir J.

(*c*) *Shaw v. Rhodes*, *ubi supra*; and see *Oddie v. Brown*, 4 De G. & Jon. 179.

(*d*) *Wilson v. Wilson*, 1 Sim. N. S. 288; [*Jagger v. Jagger*, 25 Ch. D. 720;] see *Lady Rosslyn's Trust*, 16 Sim. 391.

(*a*) *Attorney-General v. Poulnden*, 3 Hare, 555.

(*b*) *Gorst v. Lowndes*, 11 Sim. 434.

(*c*) *Griffiths v. Vere*, 9 Ves. 127; *Longdon v. Simpson*, 12 Ves. 295;

Haley v. Bannister, 4 Mad. 275; *Shaw v. Rhodes*, 1 M. & Cr. 155; *Crawley v. Crawley*, 7 Sim. 427; *Attorney-General v. Poulnden*, 3 Hare, 555.

(*d*) *McDonald v. Bryce*, 2 Keen, 276.

(*e*) *Morgan v. Morgan*, 4 De G. & Sm. 170; *Tench v. Cheese*, 6 De G. M. & G. 453.

(*f*) *Elborne v. Goode*, 14 Sim. 165.

(*g*) *Corporation of Bridgenorth v. Collins*, 15 Sim. 538.